

Greater Janakpur Area Development Council Act, 1998

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Greater Janakpur Area Development Council Act, 2055

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.0.7
2. Some Nepal Acts Amendment Act, 2072 2072.11.13
3. Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075 2075.11.19

Act No. 5 of the year 2055

An Act Made to Establish and Make Provision for the Greater Janakpur Area Development Council

Preamble: Whereas it is desirable to establish and make provision for a Greater Janakpur Area Development Council for the protection, maintenance and development of monasteries, temples, ponds and sites of religious, historical and archaeological importance within Janakpur and its secondary (Panchakoshi) pilgrimage area, and for the planned development of the Greater Janakpur area as a well-managed pilgrimage site and religious area by developing infrastructure for social, economic and cultural development,

Now, therefore, Parliament has enacted this Act in the twenty-seventh year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be called the "Greater Janakpur Area Development Council Act, 2055".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Greater Janakpur Area" means the area including Dherakachuri, Janakpur Hanumannagar, Bahuarwa Behadabela, Tulsiyahi Jabdi, Matihani, Jaleshwar, Madai, Dhruvakunda, Kanchanban (Harinmari), Parwatta, Dhanusha Dham, Satopar, and Aurahi within the secondary (Panchakoshi) pilgrimage route.

(b) "Secondary (Panchakoshi) Pilgrimage" means the pilgrimage that starts from Falgun Shukla Pareva Tithi and lasts until Falgun Purnima, which has been traditionally conducted considering Janakpurdham within the Greater Janakpur Area as the center.

(c) "Council" means the Greater Janakpur Area Development Council established pursuant to section 3.

(d) "Governing Council" means the Governing Council constituted pursuant to section 6.

(e) "Committee" means the Executive Committee constituted pursuant to section 9.

(f) "Chairperson" means the Chairperson of the Governing Council.

(g) "Member" means a member of the Governing Council, and the said term shall also refer to the

Chairperson and Member-Secretary of the Council.

(h) "Member-Secretary" means the Member-Secretary of the Governing Council.

(i) "Executive Director" means the Executive Director under section 17.

(j) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Establishment of the Greater Janakpur Development Council: (1) A Council named "Greater Janakpur Area Development Council" is established for the social, economic and cultural development within the secondary pilgrimage area.

(2) The central office of the Council shall be located at Janakpurdham. 4.

Council to be a Body Corporate: (1) The Council shall be an autonomous and corporate body with perpetual succession. (2) The Council shall have a separate seal for the conduct of its business. (3) The Council may, like an individual, purchase, acquire, hold, sell or otherwise dispose of movable and immovable property as required. (4) The Council may sue and be sued in its own name. 5. Objectives of the Council: The objectives of the Council shall be as follows:- (a) To develop infrastructure for social, religious, economic and cultural development of the Greater Janakpur Area. (b) To protect and manage places of religious, historical, archaeological importance and various heritages within the Greater Janakpur Area. (c) To identify, search and conduct research on monasteries, temples, ponds or other sites of ancient, historical, religious, cultural and archaeological importance within the Greater Janakpur Area. (d) To carry out necessary works to maintain environmental balance in the Greater Janakpur Area. (e) To develop the Greater Janakpur Area as a tourist destination. 6.

Formation of the Governing Council: (1) For acting as the supreme body of the Council, a Governing Council consisting of the following members shall be constituted: (a) Person designated by the Government of Nepal - Chairperson (b) Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (c) Chairperson, Guthi Sansthan - Member (d) Amended by the Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075. Joint Secretary, Ministry of Forests and Environment - Member (e) Director General, Department of Archaeology - Member (f) Director General, Department of Tourism - Member (g) Director General, Department of Housing and Urban Development - Member (h) Director General, Department of Buildings - Member (i) Deleted by the Some Nepal Acts Amendment Act, 2072 (j) Chiefs of Municipalities within Dhanusha and Mahottari Districts - Member (k) Chief District Officers of Dhanusha and Mahottari Districts - Member (l) Two persons nominated by the Government of Nepal from among nationally renowned scholars and social workers - Member (m) Four persons nominated by the Council, including two from among renowned and distinguished social workers of Dhanusha and Mahottari Districts - Member (n) Four persons nominated by the Council from among saints, mahants and priests within the Greater Janakpur Area - Member (o) Chairpersons of Village Executive of Village Development Committees falling on the secondary (Panchakoshi) pilgrimage route, nominated by the Council in rotation so that up to four persons are represented at one time - Member (p) Executive Director - Member-Secretary (2) The term of office of the Chairperson shall be four years and that of nominated members shall be two years. (3) If a member's position becomes vacant before the expiry of the term, the vacancy shall be filled for the remaining term by the same procedure through which that position was filled. (4) The Governing Council may, if it deems necessary, invite any expert to attend a meeting of the Governing Council as an observer. 7.

Meetings and Decisions of the Governing Council: (1) Meetings of the Governing Council shall be held on such date, time and place as the Chairperson may specify as required. (2) The Member-Secretary shall give

notice of the meeting of the Governing Council to the members at least seven days in advance. (3) If more than fifty percent of the total number of members of the Governing Council are present, the quorum for a meeting of the Governing Council shall be deemed to be fulfilled. (4) The meeting of the Governing Council shall be presided over by the Chairperson, and in the absence of the Chairperson, the members present at the meeting shall elect a member from among themselves to preside over the meeting. (5) The opinion of the majority shall prevail at a meeting of the Governing Council, and in case of a tie, the person presiding over the meeting shall have a casting vote. (6) The names of members present, subjects discussed, and decisions made at each meeting of the Governing Council shall be recorded in a separate decision book and signed by the members present. (7) The decisions of the Governing Council shall be certified and kept by the Member-Secretary. (8) Other procedures relating to meetings of the Governing Council shall be as determined by the Governing Council itself. 8. Functions, Duties and Powers of the Governing Council: The functions, duties and powers of the Governing Council shall be as follows:- (a) To formulate policies and plans relating to the development of the Greater Janakpur Area and to approve various programs. (b) To mobilize financial resources and assistance required for the implementation of plans and programs. (c) To organize or cause to organize meetings, conferences, seminars or exhibitions at national and international levels to showcase the importance of the Greater Janakpur Area. (d) To, taking into account the importance, sanctity and sensitivity of any particular place within the Greater Janakpur Area, prescribe acts prohibited in such places and to prohibit and regulate them. (e) To maintain coordination among agencies conducting development and construction activities within the Greater Janakpur Area from the governmental, non-governmental and private sectors. (f) To approve the staff establishment of the Council. (g) To give necessary directives concerning the work and activities carried out by the Committee. (h) To monitor and evaluate the work done by the Committee. (i) To carry out other acts required to be done for the fulfillment of the objectives of the Council under this Act. 9.

Formation of the Executive Committee: (1) An Executive Committee shall be constituted to implement the plans and programs approved by the Governing Council and to conduct and supervise all business of the Council. (2) The Committee under sub-section (1) shall consist of the following members:- (a) Chairperson of the Council - Chairperson (b) Deleted by the Some Nepal Acts Amendment Act, 2072 (c) Chiefs of Janakpur and Jaleshwar Municipalities - Member (d) Chief District Officers of Dhanusha and Mahottari Districts - Member (e) Chiefs of Housing and Urban Development Offices of Dhanusha and Mahottari Districts - Member (f) Four persons nominated by the Government of Nepal on the recommendation of the Council, including two from each district from among social workers, intellectuals and local distinguished persons of Dhanusha and Mahottari Districts - Member (g) One person nominated by the Council from among saints, mahants and priests who are members of the Council - Member (h) Executive Director - Member-Secretary (3) The term of office of the members nominated pursuant to clauses (f) and (g) of sub-section (2) shall be two years. 10. Meetings of the Committee: (1) Meetings of the Committee shall be held on such date, time and place as the Chairperson may specify as required. (2) The Member-Secretary shall give notice of the meeting of the Committee to the members at least seven days in advance. (3) If more than fifty percent of the total number of members of the Committee are present, the quorum for a meeting of the Committee shall be deemed to be fulfilled. (4) The meeting of the Committee shall be presided over by the Chairperson, and in the absence of the Chairperson, the members present at the meeting shall elect a member from among themselves to preside over the meeting. (5) The opinion of the majority shall prevail at a meeting of the Committee, and in case of a tie, the person presiding over the meeting shall have a casting vote. (6) The decisions of the Committee shall be certified and kept by the Member-Secretary. (7) Other procedures relating to meetings of the Committee shall be as determined by the Committee itself. 11.

Functions, Duties and Powers of the Committee: The functions, duties and powers of the Committee shall be as follows:- (a) To implement the plans and programs approved by the Governing Council. (b) To mobilize public participation while implementing the plans and programs approved by the Governing Council and to bring clear information about such plans and programs to the public. (c) To manage public utilities such as drinking water, drainage, electricity, telephone, roads within the Greater Janakpur Area, to maintain cleanliness to prevent littering, and to operate programs in coordination with the concerned offices of the Government of Nepal, Amended by the Some Nepal Acts Amendment Act, 2072 local level and non-governmental organizations within that area. (d) To plant trees, build gardens and parks, develop open spaces, protect wildlife and birds, and make arrangements to keep rivers, streams, ponds, lakes, roads in a clean, tidy and healthy condition where deemed necessary to clean the environment. (e) To publicize through various means and mobilize public participation to create widespread public awareness for the protection, promotion and sanitation of pilgrimage sites. (f) To prescribe necessary standards relating to construction carried out within the Greater Janakpur Area and to acquire land and allocate land for various works in accordance with prevailing law. (g) To establish tourism development infrastructure in places suitable for tourism. (h) To correspond, contact, seek assistance, make agreements or carry out other necessary acts with individuals, national or international associations, organizations or bodies interested in the development of the Greater Janakpur Area, subject to the general directives of the Governing Council. (i) To prepare an annual report clearly showing the details of all work and activities done, problems and audit report, and submit it to the Council. (j) To carry out other works as specified by the Governing Council. 12. Power to Form Sub-Committees: (1) The Council may form sub-committees as required for the conduct of its work. (2) The functions, duties, powers, scope of work and procedures of the sub-committees formed under sub-section (1) shall be as specified by the Council. 13.

Power to Regulate, Control and Prohibit: (1) The Council may, from time to time, by publishing a notice clearly in a public manner, regulate, control or prohibit as necessary the following acts and things within the Greater Janakpur Area, and no person shall do or cause to do such regulated, controlled or prohibited acts and things without prior approval of the Council: (a) To consume and use natural heritage, vegetation, forests, animals, archaeological, religious, historical sites and inhabited and barren lands and immovable property. (b) To settle, reside, build housing, engage in recreation, establish or set up haat bazaars, industries, etc. within any religious area specified by the Council. (c) To do any act that adversely affects natural beauty, tourist sites and public health or pollutes the environment in any way. (d) To use roads, bridges and means of transport used thereon, tree planting, water, electricity, etc. (e) To identify, search and conduct research on temples, ponds or other places of historical, religious, cultural and archaeological importance. (f) To move vehicles, use for advertisement, film, take and sell photographs, paste posters or pictures, operate any kind of fair, sell or promote any consumable goods at religious or archaeological sites. (2) For the purpose of sub-section (1), while granting approval, the Council may give or refuse approval partially or fully, or while granting approval, may prescribe necessary directives or conditions. (3) If any person does any act or thing regulated, controlled or prohibited by the Council under sub-section (1) without prior approval of the Council, or if any condition prescribed by the Council while granting approval is violated, the Council may issue an order to immediately stop such act, and if any construction has been made in connection with such act, the Council may, by giving a period of thirty-five days, order the concerned person to demolish or remove the part constructed without such approval or contrary to the conditions. 14. Power to Designate Protected Site: (1) The Council may, by a public notice, designate a site considered important from religious, historical or archaeological perspective within the Greater Janakpur Area as a protected site. (2) The Council may, by a public notice, prohibit the doing of any act in a protected site designated under

sub-section 1. 15.

Right to Appeal: A person aggrieved by an order given by the Council under sub-section (3) of section 13 may appeal to the concerned Words transformed by the Judicial Administration Act, 2073: 'Appellate Court' replaced by 'High Court'. High Court within thirty-five days from the date of such order. 16. Power to Demolish or Remove Construction Part: (1) If an appeal is filed under section 15 against a decision of the Council to demolish or remove a part of any construction, and Words transformed by the Judicial Administration Act, 2073: 'Appellate Court' replaced by 'High Court'. the High Court decides to demolish or remove such part of construction, or if no appeal is filed, the concerned person shall demolish or remove such part of construction within thirty-five days from the date of such decision or from the date of the Council's decision to demolish or remove. (2) If the concerned person fails to demolish or remove such part of construction within the period under sub-section (1), the Council may itself demolish or remove it, and the expenses incurred for such demolition or removal shall be recovered from the concerned person as a government due. (3) When the Council itself demolishes or removes any part of construction under sub-section (2), it shall be done in the presence of the concerned Ward Chairperson of the Words transformed by the Some Nepal Acts Amendment Act, 2072: 'Village Development Committee Chairperson' replaced by 'Chairperson of the Village Executive'. Rural Municipality or Municipality. If, despite making best efforts during such demolition or removal, a part larger than the part required to be demolished or removed is demolished or removed, the Council shall not be held liable. And the concerned person shall not be entitled to claim compensation for any damage caused by the demolition or removal of such extra part. 17. Executive Director: (1) The Council shall appoint one Executive Director on the basis of open competition as prescribed from among persons possessing the prescribed qualifications to conduct the daily work as the administrative chief of the Council. (2) Notwithstanding anything contained in sub-section (1), until the post of Executive Director is filled, the Government of Nepal may designate a gazetted officer at least of the second class to work as the Executive Director for a maximum period of three months. (3) The term of office of the Executive Director shall be four years. (4) The remuneration, terms of service and facilities, and functions, duties and powers of the Executive Director shall be as prescribed. 18.

Provisions Relating to Staff: (1) The Council shall have such number of staff as necessary to conduct its work smoothly. (2) The appointment, remuneration, facilities and terms of service of the staff of the Council shall be as prescribed. 19. Fund of the Council: (1) The Council shall have a separate fund, and the following amounts shall be deposited in that fund:- (a) Amount received from the Government of Nepal. (b) Amount of assistance, grant or loan received from foreign governments, associations, organizations or persons or international associations or organizations. (c) Amount received from domestic persons or associations, organizations. (d) Amount earned from investments made by the Council. (e) Amount of service fees received in lieu of services rendered by the Council. (f) Amount received from other sources. (2) Before taking a loan under clause (b) of sub-section (1) from a foreign government, association, organization or person or international association or organization, the Council shall obtain prior approval of the Government of Nepal. Provided that the Council shall not be required to obtain approval of the Government of Nepal to receive assistance or grants. The Council shall inform the Government of Nepal about such assistance or grant received. (3) The amount deposited in the fund of the Council shall be deposited by opening an account in any bank designated by the Council, and the Council may also open an account and deposit amount in a foreign bank as necessary. (4) All expenses to be incurred for the Council shall be borne from the fund of the Council. (5) The operation of the account of the fund of the Council shall be as prescribed. 20. Accounts and Audit: (1) The accounts of income and expenditure of the Council shall be maintained in accordance with the prevailing law. (2) The audit of the Council shall be conducted by the Office of the Auditor General or an

auditor designated by that Office. (3) The Government of Nepal may, at any time, inspect or cause to inspect the account books, documents and other cash and stock of the Council. 21. Meeting Allowance: Members shall receive meeting allowance as prescribed for attending meetings. 22. Annual Report: The Council shall submit an annual report of its work and activities to the Government of Nepal each year. 23. Delegation of Powers: The Council may, as necessary, delegate some of its powers to the Chairperson, Member, Member-Secretary, sub-committee or any employee of the Council. 24.

Contact with the Government of Nepal: While contacting the Government of Nepal, the Council shall do so through the Amended by the Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075. Ministry of Culture, Tourism and Civil Aviation. 25. Power to Make Rules: For the fulfillment of the objectives of this Act, the Council may make necessary rules, and such rules shall come into force after approval by the Government of Nepal. 26. Repeal and Saving: (1) The Greater Janakpur Area Development Committee (Formation) Order, 2049 is hereby repealed. (2) All movable and immovable property and rights and liabilities of the Committee formed under the Formation Order under sub-section (1) shall be deemed to have been transferred to the Council established under this Act. (3) All work and activities done by the Committee formed under the Formation Order under sub-section (1) shall be deemed to have been done by the Council established under this Act. (4) The Executive Director and staff working in the Council formed under the Formation Order under sub-section (1) shall be deemed to have been appointed under this Act.